

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

Index No.:
Purchased:

-----X
RODNEY BROWN,

Plaintiff,

-against-

Plaintiff designates
Bronx County as the place of trial

The basis of the venue is where the
tort arose

CITY OF NEW YORK, RANDY DOMINGUEZ in his
individual and official capacity as a NYPD Police Officer,
and John or Jane Doe 1-10,

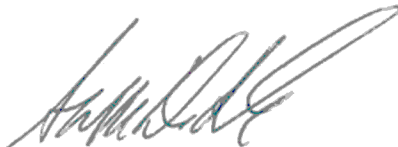
SUMMONS

Defendants.
-----X

TO THE ABOVE-NAMED DEFENDANT:

YOU ARE HEREBY SUMMONED, to answer the complaint in this action and to serve a copy of your answer, or if the complaint is not served with this summons, to serve a notice of appearance, on the Plaintiff's Attorney(s) within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: Bayside, New York
January 10, 2020



SIM & DEPAOLA, LLP

Attorneys for Plaintiff(s)

42-40 Bell Boulevard Suite 201

Bayside, New York 11361

(718) 281-0400



TO:

CORPORATION COUNSEL
OF THE CITY OF NEW YORK
100 Church Street
New York, NY 10007

P.O. RANDY DOMINGUEZ
Shield #18875, Tax ID #958517
43rd Precinct 900 Fteley Ave,
The Bronx, NY, 10473

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF THE BRONX

-----X
RODNEY BROWN,

Index No.:

Plaintiff,

-against-

VERIFIED COMPLAINT

CITY OF NEW YORK, RANDY DOMINGUEZ in his
individual and official capacity as a NYPD Police Officer,
and John or Jane Doe 1-10,

Defendants.
-----X

Plaintiff, Rodney Brown, by his attorneys, Sim & DePaola, LLP, for his complaint
against the above Defendants, alleges as follows:

1. The claim arises from a February 18, 2019 incident that occurred in the vicinity of 1890 Archer Street, County of Bronx, State of New York, in which Defendants acting under color of law falsely arrested and detained Plaintiff without probable cause or reasonable suspicion. Defendants then transported Plaintiff to the 43rd Precinct where Plaintiff was strip-searched including a cavity inspection. Plaintiff was falsely cited for an open alcoholic beverage container before being released. The Criminal Court of the City of New York, County of Bronx dismissed the charge for being legally insufficient on April 5, 2019.
2. Plaintiff seeks monetary damages (compensatory and punitive) against Defendants, as well as an award of costs and attorneys' fees, and such other and further relief as the Court deems just and proper.

PARTIES

3. Rodney Brown is a resident of 89 Metropolitan Oval, Apartment MC, County of the Bronx, State of New York
4. The Defendant City of New York (or “Defendant City”) is a municipal corporation organized under the laws of the State of New York.
5. At all times relevant hereto, Defendant City, acting through the New York City Police Department (or “NYPD”) was responsible for the policy, practice, supervision, implementation, and conduct of all NYPD matters and was responsible for the appointment, training, supervision, discipline, retention, and conduct of all NYPD personnel, including police officers and supervisory officers as well as the individually named Defendants herein.
6. In addition, at all times here relevant, Defendant City was responsible for enforcing the rules of the NYPD, and for ensuring that NYPD personnel obey the laws of the United States and the State of New York.
7. Defendant Police Officer Randy Dominguez was, at all times here relevant, a police officer employed by the NYPD and as such was acting in the capacity of an agent, servant and employee of the City of New York. Defendant was, at the times relevant herein, a Police Officer under Shield #18875, Tax ID # 958517 vin the 43rd Precinct, located at 900 Fteley Avenue, Bronx, NY 10473. Defendant is being sued in his individual and official capacities.
8. At all times relevant herein, Defendants John or Jane Doe 1-10 were police officers, supervisors, policy makers and/or officials employed by the NYPD. At this time, Plaintiff does not know the true names and/or tax registry numbers of Defendants

John or Jane Doe 1-10, as such knowledge is within the exclusive knowledge and possession of Defendants.

9. At all times relevant herein, Defendants John or Jane Doe 1-10 were acting as agents, servants and employees of the City of New York, the NYPD. Defendants John or Jane Doe 1-10, are being sued in their individual and official capacities.
10. At all times here mentioned, Defendants were acting under color of state law, to wit, under color of the statutes, ordinances, regulations, policies, customs and usages of the City and State of New York.
11. Within 90 days of accrual dates for these claims, Plaintiff timely filed a written notice of claim with the New York City Office of the Comptroller.
12. Over 30 days have elapsed since the filing of those notices, and this matter has not been settled or otherwise disposed of.
13. Plaintiff has complied with municipal defendant's request for an oral examination pursuant to Section 50-H of the New York General Municipal Law.
14. This action has been commenced within one year and ninety days from the relevant accrual dates.

FACTUAL CHARGES

15. On February 18, 2019 at approximately 11:00 A.M., Plaintiff was folding clothes at a laundromat located in the vicinity of 1890 Archer Street in Bronx, New York.
16. Plaintiff observed a police vehicle stop outside of the laundromat and two uniformed police officers exit the vehicle and enter a convenience store next door.

17. After observing the officers leave the convenience store Plaintiff entered the convenience store, purchased an iced tea, and asked the owner of the store what the police had wanted.
18. Plaintiff was drinking the iced tea he had purchased while conversing with the store owner, when the Police Officers reentered the store and confronted Plaintiff.
19. Police Officer Randy Dominguez (P.O. Dominguez) demanded Plaintiff put his arms behind his back without probable cause or reasonable suspicion to stop, detain, search, seize, or arrest Plaintiff.
20. John or Jane Doe 1, believed to be a police officer in the NYPD, was present with P.O. Dominguez at all times relevant hereto and aided P.O. Dominguez in unlawfully stopping, searching, seizing, and arresting Plaintiff.
21. Plaintiff asked the officers why he had to put his arms behind his back and they told him because he had an open container of alcohol.
22. At no point did P.O. Dominguez or John or Jane Doe 1 observe Plaintiff with an open alcoholic beverage nor at any point did Plaintiff have any alcoholic beverage on his person.
23. Plaintiff did not violate any law or local ordinance.
24. P.O. Dominguez unlawfully arrested Plaintiff, placed Plaintiff in handcuffs that were excessively tight and placed Plaintiff in the back of a police vehicle. Plaintiff fully complied with P.O. Dominguez's orders at all times.
25. P.O. Dominguez and John or Jane Doe 1 transported Plaintiff to the 43rd precinct located at 900 Fteley Avenue, The Bronx, in the State of New York. Plaintiff was unlawfully held in a cell at the 43rd precinct for over an hour.

26. P.O. Dominguez, John or Jane Doe 1, and John or Jane Doe 2, believed to be a sergeant in the NYPD, moved Plaintiff to an interrogation room at the 43rd precinct. The NYPD officers demanded that Plaintiff strip naked in order to be unlawfully strip-searched.
27. Plaintiff requested that the NYPD officers turn their body cameras on so that there would be a recording of the illegal strip-search of Plaintiff. The NYPD officers refused and instead used a towel to cover a camera that was in the interrogation room. The NYPD officers again demanded Plaintiff remove all of his clothing claiming that the only way Plaintiff would be released is if he complied with the NYPD officers' unlawful order.
28. Plaintiff, fearing further repercussions, complied with the NYPD officers order and removed all of his clothing. Plaintiff was then asked by the NYPD officers to bend over and to spread apart the cheeks of his buttocks. Plaintiff also complied with this order.
29. No illegal items were found upon Plaintiff's person.
30. Plaintiff was then cited by P.O. Dominguez for an open container of alcohol before being released from custody.
31. On April 5, 2019, Plaintiff received by mail a letter dismissing the charge against him as being legally insufficient.
32. Upon information and belief, the NYPD, the City of New York, and their respective policy and decision makers and supervisors have imposed or acquiesced to policies or customs within the NYPD that resulted in Plaintiff's arrest without probable cause

and have failed to provide adequate training in the identification of probable cause or reasonable suspicion.

33. The instant arrest of Plaintiff without the presence of probable cause was so egregious as to amount to the deliberate indifference by the policy and decision makers within the NYPD and City of New York, because the need for enhanced training and supervision is obvious due to the clear lack of any probable cause to arrest Plaintiff, as Plaintiff was merely drinking iced tea and conversing with a convenience store owner.

34. *The New York Times*, as well as numerous other reputable journalistic enterprises, have reported on the widespread corruption within the NYPD, and City of New York, particularly the incredibly disconcerting proclivity of many NYPD officers to engage in the fabrication or misrepresentation of subject matters that are materially relevant to criminal prosecutions, including the complete fabrication of arrest evidence and witnesses. Also detailed, is the NYPD's obstinate refusal to effectuate corrective or preventive measures to combat the inevitable recurrence of such misdeeds, and perhaps most troubling, the NYPD's alarming tendency to, instead reward and promote these officers, including those who were inculpated via some incontrovertible evidence.

35. On March 18, 2018, *The New York Times* published an explosive article, entitled "Promotions, Not Punishments for Officers Accused of Lying," written by Joseph Goldstein. Mr. Goldstein shines a light on the multitude of flaws within the Civilian complaint review board (CCRB) and the NYPD, highlighting the fact that the substantiation of a claim against an officer will invariably rely on the presence of

incontrovertible proof against the officer. Due to the rarity availability of this type of evidence, an alarmingly small percentage of officer misconduct claims are substantiated. The CCRB is further handicapped by a terribly designed system that requires evidence of a virtually indisputable nature to substantiate any claim against an officer. The article also details the NYPD's persistent reluctance to investigate or discipline officers who lie and even posits that this reluctance is a significant cause of the lying pandemic within the NYPD. The article references various officers and detectives who were the subject of credible accusations relating to the officers' intentionally false statements, with some allegations coming from federal and state judges.

36. On September 12, 2019, *The New York Times* published another article by Joseph Goldstein, entitled "Officers Said They Smelled Pot. The Judge Called Them Liars." Unsurprisingly, this article dealt with the unusually high frequency of officers using the odor of marijuana to excuse a search that conspicuously does not result in the recovery of any marijuana. It should not require an article in *The New York Times* to call attention to such patently disingenuous tactics, but has become necessary for a variety of reasons, including the NYPD's failure to correct such behavior, the willingness of prosecutors and judges to credit the lying officers and the increasing rate of occurrence.
37. On April 24, 2019, *The New York Times* published an article, entitled "Detective's Lies Sent Three People to Prison, Prosecutors Charge," by Sean Piccolo, detailing the lies of NYPD Second Grade Detective Joseph Franco and how those lies resulted in the imprisonment of at least three innocent people. The article described how Det.

Franco lied about observing drug transactions on at least three separate occasions, lies that were only uncovered through contradictory video evidence. Det. Franco's lies resulted in the innocent individuals each being sentenced to prison terms in excess of one-year.

38. Other articles include: (i) "Testilying' by Police: A Stubborn Problem.," by Joseph Goldstein, *The New York Times*, March 18, 2018; (ii) "New York Detective Charged with Faking Lineup Results," by Joseph Goldstein, *The New York Times*, February 17, 2018; (iii) "He Excelled as a Detective, Until Prosecutors Stopped Believing Him," by Joseph Goldstein, *The New York Times*, October 17, 2017; (iv) "Review Board Notes Rise in New York Police Officers' False Statement," by J. David Goodman, *The New York Times*, May 14, 2015; (v) "In Brooklyn Gun Cases, Suspicion Turns to the Police," by Stephanie Clifford, *The New York Times*, December 11, 2014; (vi) "Detective is Found Guilty of Planting Drugs," by Tim Stelloh, *The New York Times*, November 1, 2011; and (vii) "The Drugs? They Came From the Police," by Jim Dwyer, *The New York Times*, October 13, 2011.
39. The NYPD has a longstanding and ignominious record of failing to discipline its officers, or even entertaining allegations of wrongdoing against them. On June 26, 2019, *The New York Times* published an article, entitled "2,495 Reports of Police Bias. Not One Was Deemed Valid by the N.Y.P.D." This article reported that within the last five (5) years, almost 2,500 separate individuals have filed formal complaints with the NYPD alleging that an officer acted with bias toward them, with not a single one being substantiated by the NYPD. Such a finding is plainly incredible and obviously the result of deliberately poor or nonexistent investigatory protocols. The

report further impugned the NYPD's commitment to combat the prejudices and the biases exhibited by many of its officers.

40. Upon information and belief, further details and factual allegations will become available after discovery is completed, as the current policies and customs of the NYPD and City of New York are within the exclusive knowledge of defendants.
41. Upon information and belief, the personnel files and records of the individual officers involved in Plaintiff's arrest will reveal a history of Constitutional violations that will indicate that defendant City knew, or should have known that the individual officers were unfit for employment as NYPD police officers and would be likely to commit Constitutional violations similar to the violations that were committed against Plaintiff.
42. At all times relevant hereto, defendants, including defendants P.O. Dominguez, John or Jane Doe 1, and John or Jane Doe 2, acted maliciously and with intent to injure Plaintiff.
43. At all times relevant hereto, defendants, including defendants P.O. Dominguez, John or Jane Doe 1, were involved in the decision to arrest Plaintiff without probable cause or failed to intervene when they observed others arresting Plaintiff without probable cause.
44. At all times relevant hereto, defendants, including defendants P.O. Dominguez, John or Jane Doe 1, and John or Jane Doe 2, engaged in fraud, perjury, the suppression of evidence and other actions conducted in bad faith, or failed to intervene when defendants observed others doing so, all in furtherance of Plaintiff's criminal prosecution.

45. As a direct and proximate result of the acts of defendants P.O. Dominguez, John or Jane Doe 1, and John or Jane Doe 2, Plaintiff suffered the following injuries and damages: violations of his rights pursuant to the Fourth and Fourteenth Amendment of the United States Constitution, violations of New York State law, physical injury, physical pain and suffering, emotional trauma and suffering, including fear, embarrassment, humiliation, emotional distress, frustration, extreme inconvenience, anxiety, loss of liberty and harm to reputation.

FIRST CAUSE OF ACTION
Unlawful Search and Seizure Under
New York State Law

46. The above paragraphs are here incorporated by reference as though fully set forth.
47. Defendants subjected plaintiff and his property to unreasonable searches and seizures without a valid warrant and without reasonable suspicion or probable cause do so.
48. Plaintiff was conscious and fully aware of the unreasonable searches and seizures to his person and property.
49. Plaintiff did not consent to the unreasonable searches and seizures to his person or property.
50. The unreasonable searches and seizures to plaintiff's person and property were not otherwise privileged.
51. Accordingly, defendants violated plaintiff's right to be free from unreasonable searches and seizures, pursuant to the Fourth Amendment to the United States Constitution and Article I, Section 12, of the New York State Constitution.

52. Defendant City of New York, as employer of the individual Defendants, is responsible for their wrongdoings under the doctrine of *respondeat superior*.

53. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

SECOND CAUSE OF ACTION
Unlawful Search and Seizure Under
42 U.S.C. § 1983 Against Individual Defendants

54. The above paragraphs are here incorporated by reference as though fully set forth.

55. Defendants subjected plaintiff and his property to unreasonable searches and seizures without a valid warrant and without reasonable suspicion or probable cause do so.

56. Plaintiff was conscious and fully aware of the unreasonable searches and seizures to his person and property.

57. Plaintiff did not consent to the unreasonable searches and seizures to his person or property.

58. The unreasonable searches and seizures to plaintiff's person and property were not otherwise privileged.

59. Accordingly, defendants violated plaintiff's right to be free from unreasonable searches and seizures, pursuant to the Fourth Amendment to the United States Constitution and Article I, Section 12, of the New York State Constitution.

60. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

THIRD CAUSE OF ACTION
False Arrest and False Imprisonment Under
New York State Law

61. The above paragraphs are here incorporated by reference as though fully set forth.

62. Defendants subjected Plaintiff to false arrest, false imprisonment, and deprivation of liberty without probable cause.

63. Plaintiff was conscious of his confinement.

64. Plaintiff did not consent to his confinement.

65. Plaintiff's arrest and false imprisonment was not otherwise privileged.

66. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

67. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

FOURTH CAUSE OF ACTION

False Arrest and False Imprisonment Under
42 U.S.C. § 1983 Against Individual Defendants

68. The above paragraphs are here incorporated by reference as though fully set forth.

69. The Defendants violated the Fourth and Fourteenth Amendments to the U.S. Constitution by wrongfully and illegally arresting, detaining and imprisoning Plaintiff.

70. The wrongful, unjustifiable, and unlawful apprehension, arrest, detention, and imprisonment of Plaintiff was carried out without a valid warrant, without Plaintiff's consent, and without probable cause or reasonable suspicion.

71. At all relevant times, Defendants acted forcibly in apprehending, arresting, and imprisoning Plaintiff.

72. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

FIFTH CAUSE OF ACTION

Assault and Battery Under
New York State Law

73. The above paragraphs are here incorporated by reference as though fully set forth.

74. Defendants made plaintiff fear for his physical well-being and safety and placed him in apprehension of immediate harmful or offensive touching.

75. Defendants engaged in and subjected plaintiff to immediate harmful or offensive touching and battered him without his consent.

76. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

77. As a direct and proximate result of this breach, Plaintiff sustained the damages hereinbefore alleged.

SIXTH CAUSE OF ACTION

Excessive Force Under
42 U.S.C. § 1983 Against Individual Defendants

78. The above paragraphs are here incorporated by reference as though fully set forth.

79. The Defendants violated Plaintiff's rights under the Fourth and Fourteenth Amendments, because they used unreasonable force without Plaintiff's consent.

80. Defendants engaged in and subjected Plaintiff to immediate harmful and/or offensive touching and battered him without his consent.

81. As a direct and proximate result of this breach, Plaintiff sustained the damages hereinbefore alleged.

SEVENTH CAUSE OF ACTION

Malicious Prosecution Under
New York State Law

82. The above paragraphs are here incorporated by reference as though fully set forth.

83. Defendants initiated the prosecution against Plaintiff.

84. Defendants lacked probable cause to believe Plaintiff was guilty or that a prosecution would succeed.

85. Defendants acted with malice, which may be inferred in the absence of probable cause.

86. The prosecution was terminated in Plaintiff's favor, when all criminal charges were unconditionally dismissed and sealed.

87. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

88. As a direct and proximate result of this breach, Plaintiff sustained the damages hereinbefore alleged.

EIGHTH CAUSE OF ACTION

Malicious Prosecution Under
42 U.S.C. § 1983 Against Individual Defendants

89. The above paragraphs are here incorporated by reference as though fully set forth.

90. Defendants initiated the prosecution against Plaintiff.

91. Defendants lacked probable cause to believe Plaintiff was guilty or that a prosecution would succeed.

92. Defendants acted with malice, which may be inferred in the absence of probable cause.

93. The prosecution was terminated in Plaintiff's favor, when all criminal charges were unconditionally dismissed and sealed.

94. Accordingly, Defendants violated Plaintiff's Fourteenth Amendment rights.

95. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

NINTH CAUSE OF ACTION

Malicious Abuse of Process Under

New York State Law

96. The above paragraphs are here incorporated by reference as though fully set forth.

97. Defendants arrested, detained and caused a criminal prosecution to be initiated against plaintiff to compel the compliance or forbearance of some act.

98. Defendants had no excuse or justification to forcibly detain or initiate a prosecution against Plaintiff, especially with the absence of any cognizable probable cause.

99. Defendants intended to inflict substantial harm upon plaintiff.

100. Defendants acted to achieve a collateral purpose, beyond or in addition to plaintiff's criminal prosecution.

101. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

102. As a direct and proximate result of this unlawful conduct, plaintiff sustained the damages hereinbefore alleged.

TENTH CAUSE OF ACTION

Malicious Abuse of Process Under
42 U.S.C. § 1983 Against Individual Defendants

103. The above paragraphs are here incorporated by reference as though fully set forth.

104. Defendants arrested, detained and caused a criminal prosecution to be initiated against plaintiff to compel the compliance or forbearance of some act.

105. Defendants had no excuse or justification to forcibly detain and initiate a prosecution against plaintiff, especially with the absence of any cognizable probable cause.

106. Defendants intended to inflict substantial harm upon plaintiff.

107. Defendants acted to achieve a collateral purpose, beyond or in addition to plaintiff's criminal prosecution.

108. Defendants' actions deprived plaintiff of his right to free from illegal searches and seizures, as well as his right not to be deprived of his liberty without the due process of law.

109. As a direct and proximate result of this unlawful conduct, plaintiff sustained the damages hereinbefore alleged.

ELEVENTH CAUSE OF ACTION

Denial of Right to Fair Trial Under
New York State Law

110. The above paragraphs are here incorporated by reference as though fully set forth herein.

111. Defendants fabricated false evidence to be used against plaintiff that was likely to influence a jury's decision.

112. Defendants forwarded said false information to the District Attorney's Office.

113. Defendants' actions resulted in post-arraignment deprivation to plaintiff's liberty and freedom of movement.

114. Accordingly, defendants violated plaintiff's right to a fair trial, pursuant to Article I, Sections 1, 2 and 6 of the New York State Constitution, as well Article II, Section 12, of the New York State Civil Rights Law.

115. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

116. As a direct and proximate result of this unlawful conduct, plaintiff sustained the damages hereinbefore alleged.

TWELFTH CAUSE OF ACTION

Denial of Right to Fair Trial Under
42 U.S.C. § 1983 Against Individual Defendants

117. The above paragraphs are here incorporated by reference as though fully set forth.

118. Defendants fabricated false evidence to be used against plaintiff that was likely to influence a jury's decision.

119. Defendants forwarded said false information to the District Attorney's Office.

120. Defendants' actions resulted in post-arraignment deprivation to plaintiff's liberty and freedom of movement.

121. Accordingly, defendants violated Plaintiff's right to a fair trial, pursuant to the Sixth and Fourteenth Amendments to United States Constitution

122. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

THIRTEENTH CAUSE OF ACTION

Deprivation of Rights and Denial of Equal Protection of the Laws under
New York State law

123. The above paragraphs are here incorporated by reference as though fully set forth herein.

124. Plaintiff, as a Hispanic male, is a member of a racial minority and protected class.

125. Defendants discriminated against Plaintiff on the basis of his race, color or ethnicity.

126. Defendants also engaged in the selective of Plaintiff, in comparison to others similarly situated.

127. Defendants' selective treatment of Plaintiff was based on impermissible considerations, such as race, color, ethnicity, an intent to inhibit or punish Plaintiff's exertion of his Constitutional rights, or a malicious or bad faith intent to injure Plaintiff.

128. Defendants applied facially neutral laws against Plaintiff in a discriminatory manner.

129. Defendants, motivated by discriminatory animus, applied facially neutral statutes with adverse effects against Plaintiff.

130. Defendants did not possess a rational basis, excuse or justification for applying any laws or statutes against Plaintiff.

131. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

132. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

FOURTEENTH CAUSE OF ACTION

Deprivation of Rights and Denial of Equal Protection of the Laws under
42 U.S.C. §§ 1981 and 1983 Against Individual Defendants

133. The above paragraphs are here incorporated by reference as though fully set forth herein.

134. Plaintiff, as a Hispanic male, is a member of a racial minority and protected class.

135. Defendants discriminated against Plaintiff on the basis of his race, color or ethnicity

136. Defendants also selectively treated Plaintiff in comparison to others similarly situated.

137. Defendants' selective treatment of Plaintiff was based on impermissible considerations, such as race, color, ethnicity, an intent to inhibit or punish Plaintiff's exertion of his Constitutional rights, or malicious or bad faith intent to injure Plaintiff.

138. Defendants applied facially neutral laws against Plaintiff in a discriminatory manner.

139. Defendants, motivated by a discriminatory animus, applied facially neutral penal statutes with adverse effects against Plaintiff.

140. Defendants did not possess a rational basis, excuse or justification for applying any laws or statutes against Plaintiff.

141. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

FIFTEENTH CAUSE OF ACTION

Conspiracy to Interfere with Civil Rights and Failure to Prevent the Conspiracy under

42 U.S.C. §§ 1981, 1983, 1985 and 1986 Against Individual Defendants

142. The above paragraphs are here incorporated by reference as though fully set forth herein.

143. Defendants engaged in a conspiracy against Plaintiff to deprive Plaintiff of the equal protection of the laws, or of the privileges and immunities under the laws.

144. Defendants committed overt acts in furtherance of their conspiracy against Plaintiff.

145. Plaintiff sustained injuries to his person or was deprived of rights or privileges of citizens of the United States.

146. Defendants' conspiracy was motivated by some racial, or otherwise class-based, invidious discriminatory animus.

147. The Defendants that did not engage or participate in the conspiracy to interfere with Plaintiff's civil rights, had knowledge that acts in furtherance of the conspiracy were about to be committed or being committed, possessed the power to prevent or aid, and neglected to do so.

148. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

SIXTEENTH CAUSE OF ACTIONFailure to Intervene Under
New York State Law

149. The above paragraphs are here incorporated by reference as though fully set forth herein.

150. Those Defendants that were present but did not actively participate in the aforementioned unlawful conduct, observed such conduct, had an opportunity to prevent such conduct, had a duty to intervene and prevent such conduct, and failed to intervene.

151. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

152. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

SEVENTEENTH CAUSE OF ACTION

Failure to Intervene Under
42 U.S.C. § 1983 Against Individual Defendants

153. The above paragraphs are here incorporated by reference as though fully set forth herein.

154. Those Defendants that were present but did not actively participate in the aforementioned unlawful conduct observed such conduct, had an opportunity to prevent such conduct, had a duty to intervene and prevent such conduct, and failed to intervene.

155. Accordingly, the Defendants who failed to intervene violated the Fourth and Fourteenth Amendments.

156. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

EIGHTEENTH CAUSE OF ACTION

Negligent Hiring, Training, Retention and Supervision Under
New York State Law

157. The above paragraphs are here incorporated by reference as though fully set forth.

158. Defendant City owed a duty of care to Plaintiff to adequately hire, train, retain and supervise its employee defendants.

159. Defendant City breached those duties of care.

160. Defendant City placed defendants in a position where they could inflict foreseeable harm.

161. Defendant City knew or should have known of its employee defendants' propensity for violating the individual rights granted under the United States Constitution and the laws of the State of New York, prior to the injuries incurred by Plaintiff.

162. Defendant City failed to take reasonable measures in hiring, training, retaining and supervising its employee defendants that would have prevented the aforesaid injuries to Plaintiff.

163. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

NINETEENTH CAUSE OF ACTION

Municipal “*Monell*” Liability Under
42 U.S.C. § 1983 Against Defendant City

164. The above paragraphs are here incorporated by reference as though fully set forth.

165. Defendant City maintained a policy or custom that caused Plaintiff to be deprived of his civil rights, tacitly approved of such violative conduct or was deliberately indifferent toward the potential exposure of individuals, such as plaintiff, to such violative behavior.

166. Defendant City’s employee police officers have engaged in an illegal pattern and practice of misconduct, so consistent and widespread that it constitutes a custom or usage, of which a supervisor or policymaker must have been aware of.

167. Defendant City and its policymakers failed to provide adequate training or supervision to their subordinates to such an extent that is tantamount to a deliberate indifference toward the rights of those who may come into contact with defendant City’s employees.

168. Defendant City’s employees engaged in such egregious and flagrant violations of plaintiff’s Constitutional rights that the need for enhanced training or supervision is obvious and equates to a display of deliberate indifference by defendant City and its policymakers toward the rights of individuals, who may come into contact with defendant City’s employees.

169. Defendant City’s repeated refusal or failure to install or apply corrective or preventive measures constitutes the tacit approval of such violative behavior or a deliberate indifference to the rights of those who may be affected by such behavior.

170. Defendant City's conduct caused the violation of plaintiff's civil rights, pursuant to Constitution of the United States.

171. As a direct and proximate result of this unlawful conduct, plaintiff sustained the damages hereinbefore alleged.

WHEREFORE, Plaintiff respectfully requests judgment against Defendants, jointly and severally, as follows:

- a) On the First Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- b) On the Second Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- c) On the Third Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- d) On the Fourth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- e) On the Fifth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;

- f) On the Sixth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- g) On the Seventh Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- h) On the Eighth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- i) On the Ninth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- j) On the Tenth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- k) On the Eleventh Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- l) On the Twelfth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;

- m) On the Thirteenth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- n) On the Fourteenth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- o) On the Fifteenth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- p) On the Sixteenth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- q) On the Seventeenth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- r) On the Eighteenth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- s) On the Nineteenth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- t) Awarding Plaintiff punitive damages in an amount to be determined by a jury on all causes of action set forth herein;

u) Awarding Plaintiff reasonable attorneys' fees and costs pursuant to 28 U.S.C. § 1988;

Together with the costs and disbursements of this action

Dated: Bayside, New York
January 10, 2020



SIM & DEPAOLA, LLP
Attorneys for Plaintiff
4240 Bell Blvd., Suite 500
Bayside, NY 11361
T: (718) 281-0400
F: (718) 631-2700

ATTORNEY VERIFICATION

I, **Samuel C. DePaola**, an attorney admitted to practice in the courts of New York State, state that I am an associate of the firm of **SIM & DEPAOLA, LLP**, the attorneys of record for Plaintiff in the within action; I have read the foregoing and know the contents thereof; the same

is true to my own knowledge, except as to the matters therein stated to be alleged on information and belief, and as to those matters I believe it to be true. The reason this verification is made by myself and not by Plaintiff, is because Plaintiff resides outside the county where deponent maintains his office. I affirm that the foregoing statements are true, under the penalties of perjury.

Dated: Bayside, New York
January 10, 2020



SAMUEL C. DEPAOLA, ESQ.

Index No.:

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

RODNEY BROWN,

Plaintiff,

-against-

CITY OF NEW YORK, RANDY DOMINGUEZ in his individual and official capacity as a
NYPD Police Officer, and John or Jane Doe 1-10,
Defendants.

SUMMONS AND VERIFIED COMPLAINT

SIM & DEPAOLA, LLP
Attorney for Plaintiff(s)
42-40 Bell Boulevard
Bayside, NY 11361
Tel. (718) 281-0400

To: COMPTROLLER OF THE CITY OF NEW YORK and

Attorney(s) for Defendants

Service of a copy of the within is hereby admitted.

Dated

Attorney(s) for